IN THE DISTRICT COURT OF APPEAL OF THE STATE OF FLORIDA
FOURTH DISTRICT

Case No. 4D2026-1732

2269 INDIAN OWNER LLC,
Appellant,

v.

SCHUMACHER AUTO GROUP, INC.,
Appellee.

_____/

LT CASE No.: 50-2026-CA-000411

APPELLANT'S REPLY BRIEF

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PREFACE

Appellant 2269 INDIAN OWNER LLC may be referred to as "Appellant," "Landlord," or "Indian Owner." Appellee SCHUMACHER AUTO GROUP, INC. may be referred to as "Appellee," "Tenant," or "Schumacher."

Citations to the general record/index on appeal are referred to as "R.__," followed by a reference to the pleading and, when necessary, the paragraph number. Citations to the transcripts are referred to as "T.__."

ARGUMENT

I. THERE WAS A BONA FIDE PRESENT NEED FOR THE TRIAL COURT TO DETERMINE WHETHER SCHUMACHER HAS ANY REMAINING RENEWAL OPTIONS IN ITS LEASE WITH INDIAN OWNER

The Declaratory Judgment Act's goal is to relieve litigants of the common law rule that a declaration of rights cannot be adjudicated unless a right has been violated. The Act is to provide practical relief to end controversies that have yet to reach the point where other legal relief is available. The use of declaratory judgments should be liberally construed and its boundaries should be elastic. *Ribaya v. Board of Trustees of City Pension Fund for*

Firefighters and Police Officers in City of Tampa, 162 So. 3d 348 (Fla. 2d DCA 2015).

When a defendant seeks dismissal of a complaint on the grounds that it is legally insufficient, the trial court rules on the motion as a matter of law. *Id.* at 352. However, Appellant acknowledges that case law has also developed a gatekeeper function for trial courts in declaratory relief actions allowing a trial court in its discretion to dismiss a claim that technically states a cause of action when the circumstances do not justify using the legal resources to try the factual issues to determine the legal question. *Id.* at 353, citing *Abruzzo v. Haller*, 603 So. 2d 1338 (Fla. 2d DCA 1992). Courts have therefore developed requirements to invoke the Act that go beyond the wording of the Act, namely, that there should be a bona fide dispute between the litigants and a bona fide need for a declaration. *Id.* at 353. A trial court has some discretion to decline to adjudicate a claim when the circumstances do not warrant expending the legal resources to do so. Ordinarily, the exercise of this discretion focuses on whether the controversy involves a bona fide dispute and a bona fide need. *Id.* at 354.

"However, to the extent that the dismissal is based upon a legal determination, [the Court's] review is de novo." *Goldman v. Lustig*, 237 So. 3d 381, 384 (Fla. 4th DCA 2018) (quoting *Bloch v. Del Rey*, 208 So. 3d 189, 192 (Fla. 3d DCA 2016)); *Guttenberg v. Smith & Wesson Corp.*, 357 So. 3d 690, 693 (Fla. 4th DCA 2023). Indeed, Schumacher acknowledges this rule. (Answer Br. at 7).

The order here rests on a legal determination. The trial court did not take evidence or resolve facts outside the pleading. It ruled that the allegations of the Amended Complaint, accepted as true, did not establish a present need for a declaration. (R. 0172-0175). That is a question of law: in a declaratory action, "the question of whether a complaint states a cause of action is one of law and the standard of review is de novo," and the complaint "should not be dismissed if the plaintiff established the existence of a justiciable controversy cognizable under the Declaratory Judgment Act." *Angelo's Aggregate Materials, Ltd. v. Pasco County*, 118 So. 3d 971, 974 (Fla. 2d DCA 2013) (quoting *Murphy v. Bay Colony Prop. Owners Ass'n*, 12 So. 3d 924, 926 (Fla. 2d DCA 2009)). The trial court's ruling should therefore be reviewed de novo.

Even under an abuse of discretion standard, reversal is required. In *Milani v. Palm Beach County*, this Court decided for itself that a pre-breach contract dispute "was sufficiently mature as to permit resolution through the declaratory judgment," and held that the trial court "abused its discretion in dismissing the complaint when it should have simply entered a declaration." 973 So. 2d 1222, 1227 (Fla. 4th DCA 2008). Schumacher's suggestion that *Milani* confirms a deferential standard on the ripeness question (Answer Br. at 20 n.1) misreads the opinion. The Court gave no deference to the trial court's view that the dispute was premature. It reached its own conclusion on maturity and used "abuse of discretion" to describe the trial court's error in dismissing rather than declaring the parties' rights. *Id.* at 1226-27. The same result follows here.

Under either standard, the trial court erred in dismissing Indian Owner's Amended Complaint. Clearly, there was a bona fide dispute between the parties regarding whether Schumacher has any remaining renewal options under the lease. Schumacher refused to execute the requested estoppel submitted to it by Indian Owner, insisting that it had two remaining options to renew. (Am. Compl. ¶

38; R. 0106). The remaining question is whether there was a bona fide present need for a declaration.

The current term of the lease expires on June 30, 2029. Under its terms, Schumacher must exercise any renewal option that it may have on or before 90 days prior to June 30, 2029, which at the latest would be April 1, 2029 (Am. Compl. ¶ 10; R. 0104). Despite there being a bona fide dispute, and the time to exercise the option being on the horizon, the trial court granted Schumacher's motion to dismiss based on lack of ripeness and on the ground that Indian Owner was requesting an advisory opinion. (R. 0172-0175). The trial court had all the parties to the dispute before it, and any factual issues could almost entirely be decided by the lease documents attached to Indian Owner's Amended Complaint, or were otherwise readily ascertainable. Rather than construing the Lease, the trial court declined to reach the question unless and until Schumacher attempts to exercise a renewal option. Although the order is labeled "without prejudice," it expressly constitutes a final order of dismissal in this action, denies any further leave to amend as futile, and directs the clerk to close the case. (R. 0174). Its

practical effect is to forbid Indian Owner from obtaining a declaration until Schumacher chooses to act.

Schumacher acknowledges in its answer brief that Section 86.021 authorizes the construction of written contracts, and that Section 86.031 allows for a court to construe a contract before breach, citing *Milani v. Palm Beach County*, 973 So. 2d 1222 (Fla. 4th DCA 2008), and *Modernage Furniture Corp. v. Miami Rug Co.*, 84 So. 2d 916 (Fla. 1955). Schumacher is correct in stating that not every contract dispute can be decided before breach under Section 86.031, in that there must be a bona fide, actual, present need for a declaration based on ascertainable facts. Where the parties disagree is whether there is a bona fide present need for a declaration on the renewal option issue. Indeed, this is the only issue that this Court must determine. The cases cited by Schumacher in support of its position that there is not a present need for declaratory relief are not contract cases, but rather, are cases that requested declaratory relief regarding a newly enacted statute or policy. The nearest to a contract case cited by Schumacher is *American Indemnity Co. v. Southern Credit Acceptance, Inc.*, 147 So. 2d 10 (Fla. 3d DCA 1962). In that case, an insurer filed suit for declaratory relief as to whether

its policy would cover claims made by a former manager of a company because of certain alleged activities of the manager. The plaintiff insurer wanted a declaration from the trial court that the defendant was not entitled to recover under the policy and that he should be restrained from filing any claims. In its brief opinion, the Third District affirmed the trial court's dismissal, finding that courts may not be required to answer hypothetical questions, and that doubt over disputed facts alone is not enough to support a claim for declaratory relief. *Id.* at 11.

The facts in the present case are clearly distinguishable. The dispute involves a single issue of fact and law: whether Schumacher has any remaining renewal options after the original landlord and Schumacher entered into six addenda over the course of fifteen years. Schumacher has already affirmatively asserted, in refusing the estoppel requested in connection with Indian Owner's purchase, that it holds two remaining renewal options. (Am. Compl. ¶¶ 38-39; R. 0106-0107). All the facts necessary to determine the renewal option question were either before the trial court or were ascertainable. In contrast, *American Indemnity* involved hypothetical, unknown future claims that might never be brought.

This is not a truly hypothetical question that might never arise. There is a present dispute over the renewal option, and a fixed contractual deadline by which any option must be exercised. Courts have recognized that declaratory relief is especially appropriate where, without a determination, a party "must risk having made a significant investment" that may later prove to have been wasted. *Angelo's Aggregate Materials*, 118 So. 3d at 974. Indian Owner faces that same risk with every decision it makes about financing, leasing, improving, or selling the property while Schumacher's claimed renewal rights remain unresolved. It would not be a waste of judicial resources to decide the issue now rather than later.

II. SCHUMACHER'S RIPENING-SEEDS ARGUMENT MISAPPLIES GUTTENBERG AND PLATT

Schumacher argues that its claimed renewal right is not a declared intention to exercise it, and that because it "may never seek a renewal," litigation is not unavoidable. (Answer Br. at 22-25). That argument fails for three reasons.

First, *Guttenberg* does not supply the governing standard here. As Indian Owner explained in its Initial Brief, *Guttenberg* involved a pre-suit request for a declaration about a statute, not the construction of an existing contract. The parties in *Guttenberg* had

no contractual relationship and no written instrument to construe, and the posture was entirely prospective: the plaintiffs wanted to know what would happen if they later filed tort claims. 357 So. 3d at 692-97. Here, the parties are bound by a Lease that has been in effect for more than twenty-five years, and the question is whether options under Section 16 were already used up by past conduct, a backward-looking question answered by existing documents. Section 86.031 expressly authorizes construing a contract before breach. Nothing comparable applies to the statutory challenge in *Guttenberg*.

Second, the timing of this dispute is fixed by the contract, not left to speculation. The current term ends June 30, 2029, and any renewal option must be exercised no later than 90 days before that date, by April 1, 2029 (Am. Compl. ¶ 10; R. 0104). Whether Schumacher will someday "decide" to renew does not change Indian Owner's present position. Until the question is resolved, Indian Owner cannot know whether it owns a property that can be unilaterally encumbered through 2029 or for decades longer. It is the mere potential for the exercise of the options that creates

uncertainty and the uncertainty exists now and continues every day until the contractual deadline passes.

Third, *Platt* does not require what Schumacher says it does. Schumacher reads *Platt* to require an unequivocal announcement that a party "will exercise" an option. But *Platt* recognized declaratory relief where "claims of the several parties in interest are present and indicative of threatened litigation in the immediate future which seems unavoidable." *Platt v. General Development Corp.*, 122 So. 2d 48, 49-50 (Fla. 2d DCA 1960). The claims here are present. Schumacher did not merely remain silent about a hypothetical right. When asked to confirm the status of the Lease in a standard estoppel during Indian Owner's acquisition, it refused and affirmatively asserted two remaining options. (Am. Compl. ¶¶ 37-39; R. 0106-0107). That refusal is conduct that has already occurred, as Schumacher concedes. (Answer Br. at 15). It is not a hypothetical about what Schumacher might do. Schumacher cannot assert a contractual right against its landlord and then claim that a dispute over that same right is too speculative to decide.

III. INDIAN OWNER'S AMENDED COMPLAINT HAS SUFFICIENT ALLEGATIONS OF ULTIMATE FACTS THAT ESTABLISH PRESENT, ECONOMIC HARM.

A complaint seeking declaratory relief must allege ultimate facts showing there is a bona fide adverse interest between the parties concerning a power, privilege, immunity or right of the plaintiff; that the plaintiff is in doubt about the existence or nonexistence of the rights or privileges; and that the plaintiff is entitled to have the doubt removed. *State, Dept. of Environmental Protection v. Garcia*, 99 So. 3d 539 (Fla. 3d DCA 2011). An appellate court rules de novo whether a complaint alleges sufficient ultimate facts which, under any theory of law, would entitle the plaintiff to the relief sought. *Imperial Fire & Casualty Insurance Co. v. Acosta*, 337 So. 3d 89 (Fla. 3d DCA 2021). Moreover, at the motion to dismiss stage, a trial court must treat as true all of the complaint's well-pleaded allegations, and the trial court must only look to the complaint and its attachments. *Heisel v. City of Deltona*, 328 So. 3d 56 (Fla. 5th DCA 2021). While there is no magical number of amendments that are permitted before a complaint is dismissed with prejudice, appellate courts have generally observed that it is not an abuse of discretion to dismiss with prejudice amendments

beyond the third attempt to state a cause of action. *Gladstone v. Smith*, 729 So. 2d 1002 (Fla. 4th DCA 1999). The trial court in this action only allowed Indian Owner one amendment before ruling that it would be futile for Indian Owner to file another amended complaint based on the trial court's ruling. (R.0168).

Schumacher argues that Indian Owner did not plead ultimate facts demonstrating that it is entitled to declaratory relief. Schumacher concedes that Indian Owner did not need to plead evidentiary facts. An evidentiary fact is defined as "Those facts which are necessary for determination of the ultimate facts; they are the premises upon which conclusions of ultimate facts are based." Evidentiary fact, *Black's Law Dictionary* (6th ed. 1990). The Lease itself is an evidentiary fact in this case. Likewise, Schumacher's refusal of the estoppel and its assertion that two options remain are evidentiary facts. "Ultimate facts are those found in that vaguely defined area lying between evidentiary facts on the one side and conclusions of law on the other and are the final resulting effects which are reached by the process of logical reasoning from the evidentiary facts." *Feldman v. Dep't of Transp.*, 389 So. 2d 692, 694 (Fla. 4th DCA 1980). This definition provides

clarity as to what constitutes an ultimate fact. An ultimate fact does not itself need to be a concrete evidentiary fact but instead is a fact that logically follows from an evidentiary fact. Under this definition, Indian Owner pled ultimate facts in its Amended Complaint to state a cause of action for declaratory relief.

Paragraph 41 of Indian Owner's Amended Complaint alleges ultimate facts demonstrating there is a bona fide present need for declaratory relief. These are present-tense allegations of ultimate fact that must be accepted as true at the motion to dismiss stage. The facts alleged include:

- Indian Owner is unable to secure traditional financing for the leased Premises because of the lease term uncertainty;
- Indian Owner is unable to obtain an accurate valuation of the leased premises because it is directly dependent upon certainty of the lease term;
- Indian Owner is unable to market the lease premises for sale to prospective purchasers;
- Indian Owner is unable to plan or undertake redevelopment, renovation, or alternative use of the property because Plaintiff

cannot determine with certainty when the last potential date defendant's tenancy could conclude;

- Indian Owner is unable to negotiate with prospective future tenants or enter into lease agreements for occupancy following the lease term;
- Indian Owner is unable to make informed business decisions regarding the property, including decisions relating to capital improvements, maintenance expenditures, and long-term asset management; and
- Indian Owner's investment in the property is diminished because the uncertainty over tenant's renewal claims depresses the property's present market value and impairs plaintiff's ability to realize the benefit of its bargain. (Am. Compl. ¶ 41)

These allegations describe harm Indian Owner is experiencing now, and they rest on evidentiary facts already in the record: the Lease, its six addenda, and Schumacher's refusal of the estoppel while asserting two remaining options. Schumacher maintains that Indian Owner is required to allege ultimate facts demonstrating that the uncertainty is affecting a present transaction, undertaking or business transaction. Schumacher cites *Fla. Society of*

Ophthalmology v. State, Department of Professional Regulation, 532 So. 2d 1278 (Fla. 1st DCA 1988), where the plaintiff claimed that a statute encroached on the ability of physicians to practice medicine, and consequently would reduce the quality of eye care. The court held the claim was insufficient because it did not show there was an actual dispute, rather than a theoretical one. For example, the complaint did not allege how the statute would encroach on the practice of medicine, or how it would affect quality of care. *Id.* at 1279. *Fla. Society of Ophthalmology* thus clearly dealt with whether there was an actual controversy, rather than whether there was a present need for declaratory relief. In contrast, Indian Owner's Amended Complaint alleges in detail how the renewal option uncertainty is affecting its rights as a landlord and property owner.

Schumacher concedes that Indian Owner was not required to attach a rejected loan application, produce an appraisal, or submit evidence supporting its allegations. (Answer Br. at 12). Yet its demand that Indian Owner identify a particular pending loan, appraisal, sale effort, or tenant negotiation is a demand for exactly those evidentiary facts. The rules require ultimate facts, not evidentiary detail. Paragraph 41 pleads that Indian Owner presently

cannot obtain traditional financing, cannot obtain an accurate valuation, cannot market the property, and has suffered a present diminution in market value because of the dispute. (Am. Compl. ¶ 41; R. 0107-0108). Those allegations must be taken as true.

Schumacher also cites *Community Power Network Corporation v. JEA*, 327 So. 3d 412 (Fla. 1st DCA 2021), in support of its contention that Indian Owner failed to plead ultimate facts showing how the renewal option uncertainty was affecting present transactions or undertakings. However, the plaintiff in *Community Power* was a nonprofit solar cooperative that canceled its plans and never conducted any business. Further, plaintiff's claim was dismissed for lack of standing, and because plaintiff had nothing more than a tenuous chain of speculation that it would be somehow harmed had it actually operated the cooperative, and people actually decided to join it to go solar. Unlike *Community Power*, Indian Owner has alleged concrete examples of how the renewal option uncertainty is affecting its operations. For example, Indian Owner cannot negotiate with prospective tenants without knowing whether the lease expires in June 2029. (Am. Compl. ¶ 41). Similarly, Indian Owner cannot secure traditional financing without

knowing the end date of the Schumacher lease given that the lease on a commercial property significantly determines the value of the property. (Am. Compl. ¶ 41). Further, Indian Owner cannot possibly market the sale of the property since would-be buyers would be unable to appraise its value. (Am. Compl. ¶ 41). In short, the allegations of economic harm alleged in the Amended Complaint are the direct and present result of the renewal option dispute, and therefore sufficiently state ultimate facts that demonstrate a present need for declaratory relief. On a de novo review, this Court should reject Schumacher's assertions that they do not.

IV. SCHUMACHER'S ATTEMPT TO DISTINGUISH INDIAN OWNER'S PRE-BREACH CONTRACT CASE IS INEFFECTIVE

Schumacher maintains that all the contract cases cited by Indian Owner in its initial brief involved concrete conduct that made adjudication of the declaratory relief actions useful. The first case that Schumacher analyzes is *James v. Golson*, 92 So. 2d 180 (Fla. 1957), where a tenant claimed a present lien against a liquor license for amounts the tenant paid on behalf of the former tenant. The tenant stated he would not return the license unless he was reimbursed. Because of the tenant's demand, there were immediate practical consequences, including that the landlord could not

obtain another tenant without the license, the building was worth little without the license, and an eviction would likely destroy the tenant's existing business. *Id.* at 181. These immediate practical consequences are remarkably similar to some of the immediate economic harms alleged by Indian Owner, namely, that it cannot negotiate future leases with prospective tenants or market the property for sale because of the uncertainty over the renewal option, and that its investment in its property is diminished. Further, if Indian Owner must wait for Schumacher to exercise its renewal option, it is probable that Indian Owner would file an eviction action, which would be harmful for both Indian Owner and Schumacher and the resulting litigation would result in Schumacher holding over beyond the term of the Lease were its position incorrect as to the option periods.

Similarly, *Marconi v. Schimmel*, 181 So. 2d 167 (Fla. 3d DCA 1965), involved a dispute over ownership of liquor licenses associated with a lease and restaurant business. The plaintiff tenants alleged that doubt over the ownership of the liquor licenses hindered their ability to sell their business. The court held there was a present need to establish the value of the business for

purposes of sale or otherwise. *Id.* at 169. Plaintiffs did allege they had been making efforts to sell their business over a period of months, which had been hindered by doubt over ownership of the liquor licenses, *id.* at 168; however, while doubt over whether plaintiffs owned the liquor license may have reduced the value of their business, in the present case, doubt over the lease option makes it virtually impossible for Indian Owner to lease, sell, or obtain traditional financing. Section 86.031 does not require Indian Owner to suffer a failed financing, sale, or lease before obtaining a declaration of its rights.

Next, Schumacher attempts to factually distinguish *Milani v. Palm Beach County*, 973 So. 2d 1222 (Fla. 4th DCA 2008), where Milani sold land to Palm Beach County with restrictions on its use. When the County indicated its intent to grant easements to an adjacent property owner, Milani sued for declaratory relief to determine her rights under the agreement. *Id.* at 1223. Even though the easements had not yet been granted, Schumacher argues that the present need requirement was satisfied because the parties had negotiated specific easements that were to be part of a park project. *Id.* at 1227. This same argument can be applied to the

present dispute. Indian Owner and Schumacher have an existing lease with a lease option provision. Schumacher claims it has two option periods remaining. Even though it has not attempted to exercise one of the options, just as the County in *Milani* had not granted the easements, there is a present need for declaratory relief. The Fourth District in *Milani* concluded: "If the granting of an easement to Boca Highlands were a violation of the agreement, we see no reason that the court cannot settle the contract interpretation prior to a breach or the triggering of Milani's right of first refusal." *Id.* at 1227. The trial court in this action should have reached the same conclusion by proceeding to declare the rights of the parties regarding the renewal option, before an anticipated future breach of the lease.

CONCLUSION

The dispute between Indian Owner and Schumacher over the renewal option is precisely the category of disputes appropriate for declaratory relief pursuant to Section 86.031. Appellant requests that the Court reverse the trial court's dismissal and remand to the lower court for declaratory relief proceedings consistent with the Court's ruling.

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing document was filed electronically and was sent by E-Mail from the Florida Courts' E-Filing Portal system, unless otherwise noted below, to all counsel or parties listed on the attached Service List on October 16, 2026.

/s/ John M. Jorgensen, Esquire
Florida Bar No: 348112

CERTIFICATE OF COMPLIANCE

I CERTIFY that pursuant to Florida Rules of Appellate Procedure 9.045(b) and 9.210(a)(2)(B), as amended, this pleading was prepared using proportionately spaced Bookman Old Style 14-point font and complies with the applicable font and word count limit requirements.

/s/ John M. Jorgensen, Esquire
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